

Permanent Residency Sponsorship Policy

Issuing Office: Immigration

Date Issued: August 1, 2023

Supersedes Policy dated March 30, 2023

COVERAGE

This Permanent Residency Sponsorship Policy (the "Policy") applies to all U.S. employees of FieldCore Service, Inc. ("FieldCore" or the "Company") and its affiliated companies. The policy does not apply to temporary employees, third-parties or subcontractors.

OVERVIEW

This Policy establishes the necessary guidelines and process according to which eligible employees can be sponsored by the Company for Permanent Residence in the United States.

DEFINITION

A foreign national who has Permanent Residence (commonly known as Green Card) may lawfully live and work permanently in the United States. It also serves as evidence of the employee's registration in accordance with immigration laws. Once Permanent Residence is obtained, the foreign national no longer requires the Company's sponsorship to live and work in the United States.

GUIDELINES

Should the Company elect to sponsor an employee for Permanent Residence in the United States, it will do so when it is essential to meet business needs and when it is in compliance with U.S. Immigration law.

Business needs of the Company will determine whether an employee is eligible for Permanent Residence sponsorship in accordance with this Policy. A Permanent Residence application will only be initiated by the Immigration department when all the necessary approvals have been obtained.

An application for Permanent Residence can only be approved by the government of the United States and as such the Company cannot guarantee that a specific employee will be granted Permanent Residence. Provided the employee meets Company eligibility as defined in this Policy, the Company may sponsor the Permanent Residence application of an employee who must also meet the criteria established by the United States immigration authorities from time to time.

Company Eligibility Criteria

- Length of Service: Unless there is a compelling or critical business need that warrants acceleration of the application; an employee must have completed at



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least one year of continuous service with the Company on a U.S. based payroll before an application will be considered.

- Performance: Employee must have completed two performance management cycles with satisfactory ratings. Current performance management rating should be no less than Exceeds Expectations, and the employee must have no previous (within prior three (3) years) or pending disciplinary actions.
- Business Need: the employee must be in a role for which the Company requires US residency.
- Level: Employee must be in a Manager or Professional band or above.
- Knowledge and experience: The employee must:
 - have specialized knowledge or experience and/or have managed a team and budget in multiple jurisdictions;
 - and hold at least a Bachelor's degree level or foreign equivalent;
 - and held a managerial/professional banded position for a period of at least 2 years.
- Place of Residence after obtaining Permanent Residence: There must be a long-term rationale for the employee to remain in the US. The employee will work and reside in the United States. Although the employee can be placed on international assignments, they should not be placed on a long-term assignment or multiple short-term international assignments during the application process or soon after the approval.
- Employee Commitment: The employee will be required to sign a Repayment Agreement prior to the start of the Permanent Residency application. The employee must commit the time necessary to support the application. Should the employee wish to voluntarily terminate his/her employment during the application process, the Company will have the right to cease the application process and invoke the terms and conditions of the Repayment Agreement.
- Company Commitment: The Company will reserve the right to terminate employment at will (where at-will rights apply). The Company shall also reserve the right to cease the Permanent Residency application process at any time.
- Timing: Application should commence no later than two years prior to the employee's final max date (i.e. max date of legally residing and working in the US).

Approvals

An application for Permanent Residence, will only proceed if approved in writing by;

- Employee's Region Leader* / Function Executive*, and
- Global Human Resources Leader*, and
- Chief Financial Officer*.

*If an application is required for one of the above approvers, the approval of the CEO is required.



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Application Process

- The Permanent Residence request process will be formally requested by the employee's manager by submitting the relevant business case as an HRSD case in ServiceNow ([Link](#)) and select **Immigration -> US Permanent Residence Sponsorship** as the requested HR Service
- All Permanent Residence applications sponsored by the Company will be handled and submitted by the Immigration Department using an approved Immigration provider.
- Employees are not permitted to self-petition for Company sponsored Permanent Residence. In addition, employees may not seek their managers' signatures on documents that they file to secure an employment-based Permanent Residency outside of this Policy.
- The Company will fund all fees associated with the application subject to the employee signing the Repayment Agreement.

Repayment Agreement

Sponsorship for Permanent Residency is intended to meet business needs. To protect the investment made by the Company, employees receiving sponsorship must adhere to the repayment terms below:

- 100% repayment if voluntary termination or termination for cause occurs within 1 year of receiving US Permanent Residence
- 50% repayment if voluntary termination or termination for cause occurs within 2 years of receiving US Permanent Residence

Termination for cause is defined as a termination resulting from an employee's failure to meet performance expectations or Company policy violations.

Reservation of Authority

FieldCore reserves the right to unilaterally amend, change, modify, delete, replace or add to the statements in this Policy, at any time, with or without prior notice. FieldCore also reserves the right to interpret the provisions of this Policy, and such interpretations will be final and binding. In addition, not every situation can be anticipated in written policies, guidelines and/or procedures, and the facts surrounding any situation can require discretionary judgments by appropriate levels of management.

Raising a Concern

Any concerns about this Policy should be raised by contacting your manager, Human Resources or the Immigration Department.

FieldCore General Counsel, whose decision shall be final, shall resolve any questions about the interpretation or application of this Policy or its guidelines.



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Disciplinary

FieldCore employees are required to comply with this Policy. Failure to comply with this Policy may result in disciplinary action, up to and including termination of employment.

Related Policies and Procedures

Business Travel and Expense Reimbursement
Employment Data Protection Standards
Improper Payments
Repayment Agreement
Working with Governments



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